

The complaint

Ms L complains that Allianz Insurance Plc were unfair to reject a claim she made on a property they insure for her.

What happened

Before I proceed, I ought to say that I'm aware Ms L has brought a previous complaint to us about this claim. Briefly, it related to ceiling and water damage/damp. The ombudsman who decided that case found that Allianz had been reasonable in rejecting a ceiling claim on the basis of gradual deterioration, a second ceiling claim on the basis of it showing no insurable event and the water claim on the basis of wear and tear.

So that complaint was not upheld.

I am unable to decide on issues previously decided but Ms L has provided further information which she believes to mean Allianz owes her a settlement. Ms L says she now believes damage to have been caused by storm conditions.

Allianz said Ms L's surveyor had concluded the damage was a maintenance issue that had been ongoing for several months, and as such an insurable event couldn't be pinpointed. So, Allianz maintained that her losses would not be covered by the policy.

Ms L disagreed, she said that the reason it appeared to have been an ongoing issue was because it had taken time for the damage to present itself, on account of the drylining of the walls. Ms L says she believes a storm in late 2020 may have led to roof damage and that it was effectively caused by a one-off event which got progressively worse over time.

Ms L said that the reason the roof appeared to require maintenance, was because after the storm caused the initial damage it deteriorated further. And that the resultant damage caused by water ingress was only discovered later was because it had been obscured by the drylining in the upstairs property.

Agreement couldn't be reached so an investigator here looked into the matter. They acknowledged there were storm conditions at the end of 2020, but didn't think they could be said to have caused the damage. This was largely because the roof damage didn't appear to have been typical of that which is caused by storm.

Ms L didn't agree, so the case was passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Ms L has made many points in relation to this matter, I haven't addressed each and every one. We're an informal service and so focus on what we consider to be the pertinent points.

First of all, I note that Ms L's policy covers her for damage from storm. But for such a claim

to be covered it needs to be established that it's likely a storm was the cause.

I have seen the surveyor report produced for Ms L. That says:

"The roof is covered with tiles and contains a hip valley. The top of the flank wall is weathered by ridge tiles. There is a tiled roof to the bay. The elevations are rendered.

There are open joints within the weathering to the top of the flank wall which will be allowing water ingress. Once this water has entered the wall, it will be seeking to evaporate but will also transfer downwards due to gravity. As the water cannot evaporate at first floor due to drylining, it will continue down to the ground floor."

It also refers to there being some open jointing around the windows, and cracked render, which could be allowing water ingress. I do not consider such issues to be typical of storm damage, rather I think they'd be considered maintenance issues – so if that was the cause, it wouldn't be one that's insured by the policy.

The use of the word weathering does not suggest to me that it was storm damage. I'd consider that word to be used where damage has been caused over time as opposed to a one-off event.

I've thought about Ms L's argument, that there could have been a one-off storm which caused initial damage and that it has worsened over time, to give the appearance of weathering. And while I accept that's possible, I'm not persuaded it's likely to be what happened – especially as alternative causes have been identified. Ms L's surveyor said the appearance of the damage to the ground floor may have taken some time, but he does not say that the roof was damaged due to storm, just that it was a possibility.

There is another report from a roofing company. They've said:

"I can confirm that following my inspection of the main roof yesterday, there are no tiles missing, everything is in order and therefore the roof has nothing to do with the internal damp you are experiencing..."

Ms L contested this and included comments of them later saying *"...it is clear that more than re-pointing is required. Some of the ridge copings are loose where the mortar pointing has weathered"*.

The correspondence with the surveyor confirms that the rectification work recommended by the roofing company is maintenance. And I note they suggested the cause of the water ingress could have been *"Strong winds, heavy frosts, etc. could all have caused deterioration"*. The language used there again, 'could' and 'deterioration' is telling. The word could suggests something is possible, rather than it being likely. Also, deterioration does not lead me to the conclusion there was a one-off insured event, rather it suggests maintenance is required, as has been said elsewhere.

And frost damage is excluded from cover so not only is the open jointing and cracked render a possible cause there is another alternative reason that's not covered.

The storm identified at the end of 2020 might reasonably be described as being capable of causing *some* structural damage. So, while it's possible that could have damaged the roof, I don't think there's enough for me to say it was the probable cause. Especially as the tiling has been said to have remained intact and instead it seems mortar was deteriorating.

Ms L's theory of a storm occurring toward the end of 2020 being the catalyst for the damage

later identified, appears to be being supported by her statement that the lessees of the upstairs flat said a leak had occurred on 29 November 2020. If that's the case, with the suggestion seemingly being that the roof damage may have already been done by then, then a storm at the end of December 2020 isn't of much relevance. And if the roof had been damaged, and leaking, since November 2020 then it seems likely the lessees would have identified further leaks in their property in the meantime – even if they weren't to be identified by Ms L until later.

Overall, it's mere speculation that a storm – toward the end of 2020 – was the catalyst for a period of water ingress that only presented itself several months later. And just because the damp may have been undetected for that period it doesn't necessarily mean the initial cause can be attributed to roof damage caused by a storm – particularly as there are several other possibilities for the damage. In view of that, I won't be asking Allianz to do anything more.

My final decision

It is my final decision that I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Ms L to accept or reject my decision before 19 October 2022.

Will Weston
Ombudsman